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विश्वविद्यालय अनुदान आयोग
अधिसूचना

नई दिल्ली, 11 अप्रैल, 2023

विश्वविद्यालय अनुदान आयोग (छात्रों की शिकायतों का निवारण) विनियम, 2023

F.1-13/2022(CPP-II).—विश्वविद्यालय अनुदान आयोग अधिनियम, 1956 (1956 का 3) की धारा 26 की उप-धारा (1) के खंड (छ) द्वारा प्रदत्त शक्तियों का प्रयोग करते हुए और विश्वविद्यालय अनुदान आयोग (छात्रों की शिकायतों का निवारण) विनियम, 2019 के अधिक्रमण में, विश्वविद्यालय अनुदान आयोग एतद्वारा निम्नलिखित नियम बनाता है, नामतः:-

1. संक्षिप्त नाम, विनियोग और प्रारंभ:

- (क) इन विनियमों को विश्वविद्यालय अनुदान आयोग (छात्रों की शिकायतों का निवारण) विनियम, 2023 कहा जाएगा।
- (ख) वे ऐसे सभी उच्चतर शिक्षा संस्थानों पर लागू होंगे, जिन्हें किसी केंद्रीय अधिनियम अथवा राज्य अधिनियम के तहत स्थापित या निगमित गया हो और विश्वविद्यालय अनुदान आयोग अधिनियम, 1956 की धारा 2 के खंड (च) के तहत मान्यता-प्राप्त सभी उच्चतर शिक्षा संस्थानों तथा ऐसे सभी सम विश्वविद्यालय संस्थानों पर लागू होंगे जिन्हें तत्संबंध की धारा 3 के तहत विश्वविद्यालय घोषित किया गया हो।

- च) उपयुक्त मीडिया में प्रमुखता से प्रदर्शित कर और आयोग की वेबसाइट पर पोस्ट कर प्रवेश हेतु संभावित अभ्यर्थियों सहित जनसाधारण को सूचित करना तथा इस बाबत घोषणा करना कि संस्थान में शिकायतों के निवारण के लिए न्यूनतम मानक मौजूद नहीं हैं;
- छ) महाविद्यालय के मामले में, संबद्धता को वापस लेने के लिए संबद्ध विश्वविद्यालय को सिफारिश करना;
- ज) सम विश्वविद्यालय संस्थान के मामले में ऐसी कार्रवाई करना, जो आवश्यक, उचित एवं उपयुक्त हो;
- झ) सम विश्वविद्यालय संस्थान के मामले में सम विश्वविद्यालय संस्थान के रूप में घोषणा को वापस लिए जाने के लिए, यदि आवश्यक हो तो, केंद्र सरकार को सिफारिश करना;
- ञ) राज्य अधिनियम के अंतर्गत स्थापित अथवा निगमित विश्वविद्यालय के मामले में राज्य सरकार को आवश्यक एवं उचित कार्रवाई करने की सिफारिश करना;
- ट) गैर अनुपालना के लिए संस्थान के प्रति ऐसी कार्रवाई करना जो आवश्यक एवं उपयुक्त समझी जाए।

बशर्ते इन विनियमों के अंतर्गत आयोग की ओर से कोई कार्रवाई नहीं की जाएगी, जब तक कि संस्थान को अपनी स्थिति को स्पष्ट करने एवं उसके पक्ष को सुने जाने का अवसर नहीं दिया गया हो।

11. इन विनियमों में उल्लिखित कोई भी शर्त, विश्वविद्यालय अनुदान आयोग (छात्रों की शिकायत निवारण) विनियम, 2019 के प्रावधानों के अंतर्गत नियुक्त किसी पदधारी लोकपाल के कार्यकाल की अवधि के दौरान उसके पद पर बने रहने को प्रतिकूल रूप से प्रभावित नहीं करेगी; कार्यकाल समाप्त होने के पश्चात् लोकपाल की नियुक्ति विश्वविद्यालय अनुदान आयोग (छात्रों की शिकायतों का निवारण) के विनियम, 2023 के अनुरूप की जाएगी।

प्रा. मनिष र. जोशी, सचिव

[विज्ञापन-III/4/असा./13/2023-24]

UNIVERSITY GRANTS COMMISSION

NOTIFICATION

New Delhi, the 11th April, 2023

University Grants Commission (Redressal of Grievances of Students) Regulations, 2023

F.1-13/2022 (CPP-II).— In exercise of the powers conferred under clause (g) of sub-section (1) of Section 26 of the University Grants Commission Act, 1956 (3 of 1956), and in supersession of the University Grants Commission (Redress of Grievances of Students) Regulations, 2019, the University Grants Commission hereby makes the following regulations, namely -

1. SHORT TITLE, APPLICATION, AND COMMENCEMENT:

- (a) These regulations shall be called as the University Grants Commission (Redressal of Grievances of Students) Regulations, 2023.
- (b) They shall apply to all higher education institutions, whether established or incorporated by or under a Central Act or a State Act, and every institution recognized by the University Grants Commission under clause (f) of Section 2 of the University Grants Commission Act, 1956 and to all institutions deemed to be a University declared as such under Section 3 therein and to all higher education institutions affiliated to a University.
- (c) They shall come into force from the date of their publication in the Official Gazette.

2. OBJECTIVE

To provide opportunities for redressal of certain grievances of students already enrolled in any institution, as well as those seeking admission to such institutions, and a mechanism thereto.

3. DEFINITION:

(1) In these regulations, unless the context otherwise requires-

- (a) “Act” means the University Grants Commission Act, 1956 (3 of 1956);
- (b) “aggrieved student” means a student, who has any complaint in the matters relating to or connected with the grievances defined under these regulations.
- (c) “college” means any institution, so defined in clause (b) of sub-section (1) of section 12A of the Act.
- (d) “Commission” means the University Grants Commission established under section 4 of the UGC Act, 1956.
- (e) “declared admission policy” means such policy, including the process there under, for admission to a course or program of study as may be offered by the institution by publication in the prospectus of the institution.
- (f) “grievance” means, and includes, complaint(s) made by an aggrieved student in respect of the following, namely:
 - i. admission contrary to merit determined in accordance with the declared admission policy of the institution;
 - ii. irregularity in the process under the declared admission policy of the institution;
 - iii. refusal to admit in accordance with the declared admission policy of the institution;
 - iv. non-publication of a prospectus by the institution, in accordance with the provisions of these regulations;
 - v. publication by the institution of any information in the prospectus, which is false or misleading, and not based on facts;
 - vi. withholding of, or refusal to return, any document in the form of certificates of degree, diploma or any other award or other document deposited by a student for the purpose of seeking admission in such institution, with a view to induce or compel such student to pay any fee or fees in respect of any course or program of study which such student does not intend to pursue;
 - vii. demand of money in excess of that specified to be charged in the declared admission policy of the institution;
 - viii. violation, by the institution, of any law for the time being in force in regard to reservation of seats in admission to different category of students;
 - ix. non-payment or delay in payment of scholarships or financial aid admissible to any student under the declared admission policy of such institution, or under the conditions, if any, prescribed by the Commission;
 - x. delay by the institution in the conduct of examinations, or declaration of results, beyond the schedule specified in the academic calendar of the institution, or in such calendar prescribed by the Commission;
 - xi. failure by the institution to provide student amenities as set out in the prospectus, or is required to be extended by the institution under any provisions of law for the time being in force;
 - xii. non-transparent or unfair practices adopted by the institution for the evaluation of students;
 - xiii. delay in, or denial of, the refund of fees due to a student who withdraws admission within the time mentioned in the prospectus, subject to guidelines, if any, issued by the Commission, from time to time;
 - xiv. complaints of alleged discrimination of students from the Scheduled Castes, the Scheduled Tribes, Other Backward Classes, Women, Minorities or persons with disabilities categories;
 - xv. denial of quality education as promised at the time of admission or required to be provided;
 - xvi. harassment or victimization of a student, other than cases of harassment, which are to be proceeded against under the penal provisions of any law for the time being in force;
 - xvii. any action initiated/taken contrary to the statutes, ordinances, rules, regulations, or guidelines of the institution; and
 - xviii. any action initiated/taken contrary to the regulations and/or guidelines made/issued by the Commission and/or the regulatory body concerned.

- (g) “Institution” means a university as defined in sub-section (f) of Section 2 of the UGC Act, an institution declared as institution deemed to be university under Section 3 of the Act, and a college as defined under section 12A (1) (b) of the University Grants Commission Act, 1956.
 - (h) “Ombudsperson” means the Ombudsperson appointed under these regulations;
 - (i) “Prospectus” means and includes any publication, whether in print or otherwise, issued for providing fair and transparent information, relating to an institution, to the general public (including to those seeking admission in such institution) by such institution or any authority or person authorized by such institution to do so;
 - (j) “Student” means a person enrolled, or seeking admission to be enrolled, in any institution, to which these regulations apply, through any mode i.e., Formal / Open and Distance Learning (ODL) / Online;
 - (k) “Students’ Grievance Redressal Committee (SGRC)” means a committee constituted under these regulations, at the level of an institution; and
 - (l) “University” means a University so defined in clause (f) of section 2 of the Act or, where the context may be, an institution deemed to be University declared as such under Section 3 thereof.
- (2) Words and expressions used and not defined in these regulations but defined in the University Grants Commission Act, 1956 shall have the same meanings as respectively assigned to them in the Act.

4. MANDATORY PUBLICATION OF PROSPECTUS, ITS CONTENTS, AND PRICING:

- (1) Every institution, shall publish and/or upload on its website, before expiry of at least sixty days prior to the date of the commencement of the admission to any of its courses or programs of study, a prospectus containing the following for the information of persons intending to seek admission to such institution and the general public, namely:
- (a) the list of programs of study and courses offered along with the broad outlines of the syllabus specified by the appropriate statutory authority or by the institution, as the case may be, for every course or program of study, including teaching hours, practical sessions and other assignments;
 - (b) the number of seats approved by the appropriate statutory authority in respect of each course or program of study for the academic year for which admission is proposed to be made;
 - (c) the conditions of educational qualifications and eligibility including the minimum and maximum age limit of persons for admission as a student in a particular course or program of study, specified by the institution;
 - (d) the process of selection of eligible candidates applying for such admission, including all relevant information in regard to the details of test or examination for selecting such candidates for admission to each course or program of study and the amount of fee prescribed for the admission test;
 - (e) each component of the fee, deposits and other charges payable by the students admitted to such institution for pursuing a course or program of study, and the other terms and conditions of such payment;
 - (f) rules/regulations for imposition and collection of any fines in specified heads or categories, minimum and maximum fines may be imposed;
 - (g) the percentage of tuition fee and other charges refundable to a student admitted in such institution in case such student withdraws from such institution before or after completion of course or program of study and the time within and the manner in which such refund shall be made to that student;
 - (h) details of the teaching faculty, including their educational qualifications, along with their type of appointment (Regular/visiting/guest) and teaching experience of every member thereof;
 - (i) information with regard to physical and academic infrastructure and other facilities including hostel accommodation and its fee, library, hospital, or industry wherein the practical training is to be imparted to the students and in particular the amenities accessible by students on being admitted to the institution;
 - (j) all relevant instructions in regard to maintaining the discipline by students within or outside the campus of the institution, and, in particular such discipline relating to the prohibition of ragging of any student or students and the consequences thereof and for violating the provisions of any regulation in this behalf made by the relevant statutory regulatory authority; and
 - (k) Any other information as may be specified by the Commission.

Provided that an institution shall publish/upload information referred to in clauses (a) to (k) of this regulation, on its website, and the attention of prospective students and the general public shall be drawn to such publication being on the website through advertisements displayed prominently indifferent newspapers and through other media.

- (2) Every institution shall fix the price of each printed copy of the prospectus, being not more than the reasonable cost of its publication and distribution and no profit be made out of the publication, distribution, or sale of prospectus.

5. STUDENT GRIEVANCE REDRESSAL COMMITTEES (SGRC):

- (i) A complaint from an aggrieved student relating to the institution shall be addressed to the Chairperson, Students' Grievance Redressal Committee (SGRC).
- (ii) Every Institution shall constitute such number of Students' Grievance Redressal Committees (SGRC), as may be required to consider grievances of the students, with the following composition, namely:
 - a) A Professor - Chairperson
 - b) Four Professors/Senior Faculty Members of the Institution as Members.
 - c) A representative from among students to be nominated on academic merit/excellence in sports/performance in co-curricular activities-Special Invitee.
- (iii) Atleast one member or the Chairperson shall be a woman and atleast one member or the Chairperson shall be from SC/ST/OBC category.
- (iv) The term of the chairperson and members shall be for a period of two years.
- (v) The term of the special invitee shall be one year.
- (vi) The quorum for the meeting including the Chairperson, but excluding the special invitee, shall be three.
- (vii) In considering the grievances before it, the SGRC shall follow principles of natural justice.
- (viii) The SGRC shall send its report with recommendations, if any, to the competent authority of the institution concerned and a copy thereof to the aggrieved student, preferably within a period of 15 working days from the date of receipt of the complaint.
- (ix) Any student aggrieved by the decision of the Students' Grievance Redressal Committee may prefer an appeal to the Ombudsperson, within a period of fifteen days from the date of receipt of such decision.

6. APPOINTMENT, TENURE, REMOVAL AND CONDITIONS OF SERVICES OF OMBUDSPERSON:

- (i) Each University shall appoint Ombudsperson for redressal of grievances of students of the university and colleges/institutions affiliated with the university under these regulations.
- (ii) There shall be one or more part-time functionaries designated as Ombudspersons to hear, and decide on, appeals preferred against the decisions of the SGRCs.
- (iii) The Ombudsperson shall be a retired Vice-Chancellor or a retired Professor (who has worked as Dean/HOD) and has 10 years' experience as a Professor at State/Central Universities/Institutions of National Importance/Deemed to be Universities or a former District Judge.
- (iv) The Ombudsperson shall not, at the time of appointment, during one year before appointment, or in the course of his/her tenure as Ombudsperson, be in conflict of interest with the Institution where his/her personal relationship, professional affiliations or financial interest may compromise or reasonably appear to compromise, the independence of judgment towards the Institution.
- (v) The Ombudsperson shall be appointed for a period of three years or until he/she attains the age of 70 years, whichever is earlier, from the date of assuming office, and shall be eligible for reappointment for another one term.
- (vi) For conducting the hearings, the Ombudsperson shall be paid a sitting fee, per diem, in accordance with the norms fixed by the respective university and shall, in addition, be eligible for reimbursement of the expenditure incurred on conveyance.
- (vii) The University may remove the Ombudsperson from office, on charges of proven misconduct or misbehaviour.
- (viii) No order of removal of Ombudsperson shall be made except after an inquiry made in this regard by a person, not below the rank of a retired judge of the High Court in which a reasonable opportunity of being heard is given to the Ombudsperson.

7. FUNCTIONS OF OMBUDSPERSON:

- (i) The Ombudsperson shall hear appeals from an aggrieved student, only after the student has availed all other remedies provided under these regulations.

- (ii) While issues of malpractices in the conduct of examination or in the process of evaluation may be referred to the Ombudsperson, no appeal or application for revaluation or re-totalling of answer sheets from an examination, shall be entertained by the Ombudsperson unless specific irregularity materially affecting the outcome or specific instance of discrimination is indicated.
- (iii) The Ombudsperson may avail assistance of any person, as amicus curiae, for hearing complaints of alleged discrimination.
- (iv) The Ombudsperson shall make all efforts to resolve the grievances within a period of 30 days of receiving the appeal from the aggrieved student(s).

8. PROCEDURE FOR REDRESSAL OF GRIEVANCES BY OMBUDSPERSONS AND STUDENT GRIEVANCE REDRESSAL COMMITTEES:

- (i) Each institution shall, within a period of three months from the date of issue of this notification, have an online portal where any aggrieved student may submit an application seeking redressal of grievance.
- (ii) On receipt of an online complaint, the institution shall refer the complaint to the appropriate Students' Grievance Redressal Committee, along with its comments within 15 days of receipt of complaint on the online portal.
- (iii) The Students' Grievance Redressal Committee, as the case may be, shall fix a date for hearing the complaint which shall be communicated to the institution and the aggrieved student.
- (iv) An aggrieved student may appear either in person or authorize a representative to present the case.
- (v) Grievances not resolved by the Students' Grievance Redressal Committee within the time period provided in these regulations may be referred to the Ombudsperson by the university.
- (vi) Institutions shall extend co-operation to the Ombudsperson or the Student Grievance Redressal Committee(s), in early redressal of grievances.
- (vii) The Ombudsperson shall, after giving reasonable opportunities of being heard to the parties concerned, on the conclusion of proceedings, pass such order, with reasons thereof, as may be deemed fit to redress the grievance and provide such relief as may be appropriate to the aggrieved student
- (viii) The institution, as well as the aggrieved student, shall be provided with copies of the order under the signature of the Ombudsperson.
- (ix) The institution shall comply with the recommendations of the Ombudsperson.
- (x) The Ombudsperson may recommend appropriate action against the complainant, where a complaint is found to be false or frivolous.

9. INFORMATION REGARDING OMBUDSPERSONS AND STUDENT GRIEVANCE REDRESSAL COMMITTEES:

An institution shall furnish, prominently, on its website and in its prospectus, all relevant information in respect of the Students' Grievance Redressal Committee(s) coming in its purview, and the Ombudsperson for the purpose of appeals.

10. CONSEQUENCES OF NON-COMPLIANCE:

The Commission shall in respect of any institution, which wilfully contravenes these regulations or repeatedly fails to comply with the recommendation of the Ombudsperson or the Students' Grievance Redressal Committee, as the case may be, proceed to take one or more of the following actions till the institution complies with these Regulations to the satisfaction of the Commission, namely:

- (a) withdrawal of declaration of fitness to receive grants under section 12B of the Act;
- (b) withholding any grant allocated to the Institution;

- (c) declaring the institution ineligible for consideration for any assistance under any of the general or special assistance programs of the Commission;
- (d) declaring the institution ineligible to offer courses through Online/ODL mode for a specified period;
- (e) withdrawing / withholding / suspending the approval for offering courses through Online/ODL mode;
- (f) informing the general public, including potential candidates for admission, through a notice displayed prominently in suitable media and posted on the website of the Commission, declaring that the institution does not possess the minimum standards for redressal of grievances;
- (g) recommend to the affiliating University for withdrawal of affiliation, in case of a college;
- (h) take such action as it may deem necessary, appropriate and fit, in case of an institution deemed to be University;
- (i) recommend to the Central Government, if required, for withdrawal of declaration as institution deemed to be a University, in case of an institution deemed to be University;
- (j) recommend to the State Government to take necessary and appropriate action, in case of a University established or incorporated under a State Act;
- (k) such other action as may be deemed necessary and appropriate against an institution for non-compliance.

Provided that no action shall be taken by the Commission under this regulation, unless the institution has been provided an opportunity of being heard to explain its position.

11. Nothing mentioned herein above in these regulations shall affect the continuance in office, during the currency of the term, of an incumbent Ombudsperson appointed under the provisions of the UGC (Redress of Grievances of Students) Regulations, 2019; where after, the appointment of Ombudsperson shall be made as per University Grants Commission (Redressal of Grievances of Students) Regulations, 2023.

Prof. MANISH R. JOSHI, Secy.

[ADVT.-III/4/Ext./13/2023-24]